

Court No. - 39

Case :- WRIT - C No. - 24901 of 2014

Petitioner :- Kamlesh Kumar Singh

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Akhilesh K. Dwivedi, Praveen Kumar Singh

Counsel for Respondent :- C.S.C., Mahboob Ahmad

Hon'ble Sanjay Misra, J.

Hon'ble Anant Kumar, J.

We have heard Sri Akhilesh Kumar Dwivedi, learned counsel for the petitioner, learned standing counsel for the State-respondent and Sri Mahboob Ahmad, learned counsel for Power Corporation and its officials.

The petitioner disputes the amount of Bill No. 436123 issued by Purvanchal Electricity Supply Corporation Limited (annexure-4 to the writ petition).

Learned counsel for the respondent-Corporation has submitted that when the quantum of bill is disputed by a consumer, he has remedy under clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005 and all the disputed questions of fact can, very effectively, be decided by the competent authority where the entire record of the consumer would be available.

In view of the aforesaid preliminary objection raised by learned counsel for the Corporation, we find that the petitioner is disputing the quantum of bill submitted by the Corporation to him. The dispute is purely factual in nature and requires adjudication by evidence and proof.

Under such circumstance, this Court in its writ jurisdiction would not be in a position to apprise the evidence and record any finding of fact on the basis of annexure or exchange of affidavits. The petitioner has a more appropriate remedy available to him under the Uttar Pradesh Electricity Supply Code, 2005 and therefore, this writ petition cannot be maintained at this stage.

The writ petition is finally disposed of by providing that the petitioner, if he so desires, may avail the remedy available to him under the Uttar Pradesh Electricity Supply Code, 2005.

No order is passed as to costs.

Order Date :- 1.5.2014

Mukesh Kr.